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Privacy Policy

This privacy policy is updated as at 27 November 2024 by Brother International (Aust) Pty Ltd, A.B.N. 17 001 393 835, A.C.N. 001 393 835 whose principal address is 2/51 Eastern Creek Drive, Eastern Creek NSW 2766 (*hereafter "Brother", "we", "our" or "us"*).

Brother respects your privacy and complies with Australia's Privacy Act 1988 (Cth) and the Australian Privacy Principles (APPs) that regulate how we handle your personal information.

This Privacy Policy outlines how we will collect, store, use and disclose personal information you provide to us.

To obtain more details about the Privacy Act 1988 (Cth) and the APPs, please refer to the Australian government website: www.oaic.gov.au (<http://www.oaic.gov.au/>).

Collection of information

How we collect: In the normal course of business we do not unnecessarily collect personal information about individuals. We only collect personal information directly from you, and only by lawful and fair means. We only collect what is reasonably necessary to assist you and run our business. We may collect personal information through some of the following means:

- when you purchase products or services from our website;
- when you register for an account with us, or otherwise provide us with your details;
- where you enter into, or propose to enter into, a contract with us;
- where you use our websites, products or other online services or otherwise interact with us;
- when you provide us with information in response to direct marketing or customer satisfaction and market research surveys and questionnaires;
- in the course of administering or providing any of our products or services;
- when you apply for employment with us; and
- as otherwise required to manage our business.

We may collect our personal information from sources other than you if it is unreasonable or impracticable to collect that personal information from you. If we collect any personal information about you from someone other than you, to the extent not already set out in this Privacy Policy and where reasonable, we will inform you of the fact that we will collect, or have collected, such information and the circumstances of that collection before, at or as soon as reasonably practicable after we collect such personal information.

What information we collect

Types of information: Depending on the products or services you ask us to provide you, we collect the following information to personalise and improve

- personal information** including names and contact details, such as mailing address, delivery address, business name, telephone/facsimile numbers, email address);
 - technology information** including product registration details, IP address, and product purchase details including the model, serial number, and retailer;
 - billing and financial information** including: bank account details, credit card number, cardholder name and expiration date;
 - other information:** any other information you might choose to share with us; and
- live chat and web forms may not function correctly.

Find out more
(<http://www.brother.com.au/en/privacy-policy>)

as required by law: other kinds of personal information as permitted or required by law or other kinds of personal information that we notify you of at or about the time of collection.

Anonymity: You will have the option of not identifying yourself when entering transactions with us, using our website or communicating with us. However:

you may be precluded from taking advantage of some or all of our products and services, including not being able to purchase products or services from our website; and

we will require you to identify yourself if we are required by law to deal with individuals who have identified themselves or it is impracticable for us to deal with you if you do not identify yourself.

Use

Primary and secondary purposes: We use your personal information for the purpose for which it has been provided and any other purpose permitted under the Privacy Act. You consent to us using your personal information (other than sensitive information) for the following primary and secondary purposes:

Provide you with products or services;

Carry out the transaction you have requested from us;

Provide information and training;

Process your application to participate in promotions or competitions;

Promote our brand including marketing purposes or market analytics;

Update you on important notices, product updates and technical information and policies;

Communicate the latest product announcements, events and offers;

Handle complaints; and

Comply with the law.

Use of your personal information: In addition to the purposes listed above, we may use your personal information (other than sensitive information) for purposes related to the above purposes, other purposes which we notify you of when we collect the information and for purposes otherwise permitted or required by law.

Reasonable steps: Where personal information is used or disclosed, we take steps reasonable in the circumstances to ensure it is relevant to the purpose for which it is to be used or disclosed.

Refusal to provide personal information: You are under no obligation to provide your personal information to Brother. However, without certain information from you, we may not be able to provide services or information to you or may be limited in how we can interact with you.

Disclosure

Notification: We will always notify you in advance if we need to collect, use or disclose personal information, allowing you the opportunity to opt out of any such further activity. We will never collect, use or disclose personal information other than as permitted by the Privacy Act.

We use cookies to personalise and improve

Third parties: We do not sell personal information and we will not disclose personal information as it relates to our direct business activities.

Only disclose
(<https://www.brother.com.au/en/content/privacy-policy>)

As per privacy policy

Australia website. Note: If you have disabled

How we disclose: We may disclose your personal information both within and outside Australia to other Brother Group Companies including its subsidiaries, and third parties such as:

Our delivery partners and service providers, including those who provide shipping,

payment processing, communications, marketing and analytics, and customer service to

US;
correctly.

Our business partners, dealers and agents, contractors and advisers

Our professional advisers including lawyers, accountants, tax advisors and auditor
Law enforcement agencies or as otherwise required or authorised by law
Regulatory or government bodies for the purposes of resolving customer complaints or disputes
Any other person or for any other purpose that would be reasonably expected.

Overseas transfers: In order to undertake one or more of the following actions above, it is likely that we may transfer your personal information to recipients overseas and you consent to such disclosure. It is not reasonably practical to list all the countries in which the recipients of your information are likely to be located, but it is likely such countries will include Brother Group companies in Japan and Singapore and to our third-party service providers in Philippines and India. If you do not consent to your information being disclosed to recipients overseas kindly contact Brother's Privacy Officer whose details are outlined below under 'Access and Correction'.

Device Data

Device data: Brother Group companies, including Brother Industries, Ltd. (a company operating in Japan) may collect certain device data from you when you use our products and you connect to the internet. This may include (but is not limited to) the following:

- model name and version of the product;
- model names and version of browsers and their setting;
- usage of the product (for example, which application you used in software, or the print volumes);
- access logs of the websites and mobile apps that Brother Group companies provide; and
- anonymous log data.

Statement on Device Data: You acknowledge the terms on which Brother Group companies collect device data is as set out in the 'Statement on Device Data' which you agree to when installing our software and which is available here: [Statement on Device Data](http://www.brother.com/privacy/device/en-us/index.htm) | [Brother's Statement on Device Data Worldwide](http://www.brother.com/privacy/device/en-us/index.htm) | [Brother](http://www.brother.com/privacy/device/en-us/index.htm) (<http://www.brother.com/privacy/device/en-us/index.htm>).

(<http://www.brother.com/privacy/device/en-us/index.htm>) **Device data as personal information:** You acknowledge and agree that by registering your device details with us, certain device data collected by Brother Group companies may become personal information able to be matched with your identity. To the extent device data is collected by us or transferred to us by a Brother Group company and that device data comprises or includes 'personal information' under the *Privacy Act 1988* (Cth), that personal information will be held and disclosed in accordance with this Privacy Policy. By accepting this Privacy Policy, you acknowledge collection of that personal information and consent to us using the device data for the purposes set out in this Privacy Policy.

Data quality and Security

Accuracy: We will take reasonable steps to make sure that your personal information is accurate, complete and up-to-date and securely maintained.

We use cookies to personalise and improve your experience on the Brother International.

Security: We have implemented and will maintain current standards of technology and operational security to protect your personal information from such interference.

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Deletion: We will delete or destroy personal information, if it is lawful and reasonable to do so, when it is no longer needed for our website's purpose.

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correctly.

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Direct Marketing

Why we direct market: Like most businesses, marketing is important to our continued success. We believe we have a unique range of products and services that we provide to customers at a high standard. We therefore like to stay in touch with customers and let them know about new opportunities.

How we direct market: From time to time we may contact you with information about new products, services and promotions either from us, or from third parties which may be of interest to you. In these situations, your personally identifiable information is not transferred to the third party. We will not disclose your personal information to third parties for marketing purposes without your consent.

Format: Communications may be sent to you through electronic messages such as email, SMS and other messaging applications. We may also contact you through social media channels where you choose to interact.

Opt-out: You may opt out at any time from receiving communications from us that are not account related or legally required by making a request in writing to our Privacy Officer at privacyofficer@brother.com.au or by using the 'unsubscribe' function contained in every electronic direct mail or SMS message you receive from us.

Cookies

What is a cookie: The Brother website uses cookies. A cookie is a piece of information that our web server may send to your browser when you visit our website. These cookies recognise when your device has visited our website(s) before, so we can distinguish you from other users of the website. This helps us improve your experience and the Brother website(s).

Blocking cookies: With most internet browsers, you can erase cookies from your computer hard drive, block all or specific types of cookies, or receive a warning before a cookie is stored. If you want to do this, please refer to your browser's documentation to learn more.

Our cookies: There are specific types of first and third-party cookies served through our website(s) and the purposes they perform. These cookies include:

Essential website cookies: These cookies are strictly necessary to provide you with services available through our website(s).

Performance and functionality cookies: These cookies are used to enhance the performance and functionality of our website(s) but are non-essential to their use. However, without these cookies, certain functionality may become unavailable.

Analytics and customisation cookies: These cookies collect information that is used either in aggregate form to help us understand how our website(s) are being used or how effective our marketing campaigns are, or to help us customise our website(s) for you.

We use cookies to personalise and improve

Advertising cookies: These cookies are used to make advertising messages more relevant to you. They perform functions like preventing the same ad from continuously reappearing, ensuring that ads are properly displayed for advertisers, and in some cases selecting advertisements that are based on your interests.

You can visit Your Online Choices (<https://www.youronlinechoices.com/ie/your-ad-choices>) and do a blanket opt-out for the organisations who signed up to Your Online Choices. When you opt out of receiving targeted ads, this information is usually saved on a cookie. Often this means that if you clear your cookies, you'll have to opt out again.

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(<https://www.brother.com.au/en/content/privacy-policy>)

Social networking cookies: These cookies are used to enable you to share pages and content that you find interesting on our website(s) through third party social networking and other websites. These cookies may also be used for advertising purposes too. You can opt out of Facebook, Google, Twitter or Instagram by looking under its account settings.

Google Analytics

What is Google Analytics: We use Google Analytics, a web analytics service provided by Google LLC ("Google"), to track and monitor how you use our Sites. In connection with use of Google Analytics, we use cookies to distinguish unique users by assigning a randomly generated client ID that is used to monitor and calculate visitor, session and campaign data for the Sites analytics report. We may also implement Google Analytics Demographics and Interest Reporting, a feature of Google Analytics Advertising, to help us understand the demographics and interests of our Sites' users. In connection with use of Google Analytics Advertising, our Sites and third-party vendors, including Google, use first-party cookies (such as the Google Analytics cookie) or other first-party identifiers, and third-party cookies (such as Google advertising cookies) or other third-party identifiers together.

Further information: For more information about how Google handles your information, please see www.google.com/policies/privacy/partners (<http://www.google.com/policies/privacy/partners>).

Out-out: If you would like to prevent your data from being collected and processed by Google Analytics, you can opt-out from Google Analytics by downloading and installing the Google Analytics' Opt-out Add-on (<https://tools.google.com/dlpage/gaoptout/>).

Access and correction

Access to personal information: We respect a person's right to access any personal information that we collect and hold about them and to have it corrected if it is inaccurate, incomplete or out of date. You have a right to request to correct, and to access the personal information that we hold about you, subject to some exceptions authorised by law.

Request: Requests for access or correction should be directed to the Privacy Officer, whose contact details are set out below. To obtain access or to correct to your personal information:

- you will have to provide proof of identity to ensure that personal information is provided only to the correct individuals and that the privacy of others is protected;
- we request that you be reasonably specific about the information you require access to or correct of; and
- we may charge you a reasonable administration fee, which reflects and will not exceed the cost to Brother for providing access or correcting in accordance with your request.

Response: If you make a request for access to or correction of personal information, we will:

respond to your request within a reasonable period after the request is made; and

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If Brother refuses your request to access or correct your personal information, we will provide you with written reasons for the refusal and details of complaint mechanisms.

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Exceptions: We are not obliged to allow access to your personal information for certain reasons as provided in the Privacy Act.

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correctly.

Find out more
(<https://www.brother.com.au/en/content/privacy-policy>)

GDPR

Definitions. For the purposes of this paragraph 10, "Personal Data" has the meaning given in Article 4 of the Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27th 2016 most commonly referred to as the 'General Data Protection Regulation' or 'GDPR'.

EU. If we become aware that you are a citizen of, or are located within, the European Union at the time at which we collect Personal Data about you, or at the time at which we propose to transfer Personal Data about you overseas, we will take steps to ensure that we comply with Articles 45 to 49 of the GDPR in relation to the transfer of your Personal Data overseas. However, you acknowledge that as you are receiving services from us within Australia, you are required to provide us with written notice of our need to comply with the GDPR in relation to your Personal Data if you wish for us to take steps that are not already set out in this Privacy Policy.

Restriction. If we become aware that you are a citizen of, or are located within, the European Union at the time at which we collect Personal Data about you, or at the time at which you make a relevant request to erase, access or correct your personal information, we will take steps to ensure that we comply with any request by you to:

erase your Personal Data in certain circumstances pursuant to Article 17 of the GDPR; or
restrict the use of your Personal Data pursuant to Article 18 of the GDPR.

A request to erase, access or correct your personal information should be made in writing and directed to the Privacy Officer whose contact details are set out below.

You acknowledge that, depending on the nature of the erasure or restriction you request, we may be unable to provide you with some or all of our products or services if we comply with your request. In such circumstances, we will advise you of our inability to provide or continue to provide you with the relevant products, services or access, and if you confirm that you would like us to proceed with your request, we may:

terminate a relevant agreement or other document with you in relation to our products and services; or
remove or restrict your access to our website or our online services

Contacting and complaints

Contact information: If you would like further information about how we manage your personal information, or if you have any queries relating to our Privacy Policy, please contact us by:

E-mail: privacyofficer@brother.com.au

Mail: The Privacy Officer

Brother International (Aust) Pty Ltd

PO Box 398 North Ryde 1670

Complaints. If you have a complaint about how we collect, use, disclose, manage or protect your personal information, or consider that we have breached the Privacy Act or Australian Privacy Principles, please contact us using our contact details above. We will respond to your complaint within 14 working days of receiving the complaint.

We use cookies to personalise and improve

your experience on the Brother International

Response and resolution. Once the complaint has been received, we may resolve the matter in a number of ways:

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as possible, including details of any relevant dates and documentation. This will enable us to investigate the complaint and determine an appropriate solution.

We may request further information from you. Please provide us with as much information as possible, including details of any relevant dates and documentation. This will enable us to investigate the complaint and determine an appropriate solution.

We will discuss options for resolution with you and if you have suggestions about how the matter might be resolved you should raise these with our Privacy Officer.

Find out more
(<https://www.brother.com.au/en/content/privacypolicy>)

Where necessary, the complaint will be investigated. We will try to do so within a reasonable time frame. It may be necessary to contact others in order to proceed with the investigation. This may be necessary in order to progress your complaint.

If your complaint involves the conduct of our employees we will raise the matter with the employees concerned and seek their comment and input in the resolution of the complaint.

Notice of decision. After investigating a complaint, we will give you a written notice about our decision.

OIAC. If you are dissatisfied with how we handle your complaint, you may contact:
Office of the Australian Information Commissioner
GPO Box 5218, Sydney NSW 2001
1300 363 992 or via email at enquiries@oaic.gov.au.

Updates

From time to time, it may be necessary for us to review or update this Privacy Policy. We suggest that you should periodically review our current Privacy Policy via our website www.brother.com.au (<https://www.brother.com.au/>) or by contacting our Privacy Officer, whose details are outlined above under 'Access and Correction', to inform yourself of any change. We will not send you any separate notification of changes to this Policy.

Reviewed: 27 November 2024

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Sitemap
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Terms of Use
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Terms of Sale
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